

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 23, 2018

Honorable Scott Steffen
Judge of the Superior Court
County of Stanislaus
800 11th Street
Modesto, CA 95354

Re: Walker II, Michael Edward
CDC No.: T60369
Case No.: 1091957
Date of Sentence: 12/12/2006

Dear Honorable Scott Steffen:

The purpose of this letter is to provide the court with authority to resentence Michael Edward Walker, II pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Walker II was sentenced in 2006, and was convicted of section 245, subdivision (a)(1), Assault with a deadly weapon. The trial court sentenced inmate Walker II on 12/12/2006. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Walker, II's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Walker II's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Ricardo Cordova, Stanislaus County Presiding Judge
Stanislaus District Attorney
Public Defender

T60369

3/6/07
T60369

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: STANISLAUS			FILED	
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: MICHAEL EDWARD WALKER, II		DOB: 01-15-78	1091957	-A
AKA:				-B
CII# 08827913		☐ NOT PRESENT		-C
BOOKING #:		☐ AMENDED ABSTRACT		-D
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT		CLERK OF THE SUPERIOR COURT COUNTY OF STANISLAUS BY _____ DEPUTY		
DATE OF HEARING 12-12-06	DEPT. NO. 9	JUDGE SCOTT STEFFEN		
CLERK R. Bustamante	REPORTER S. Thomas	PROBATION NO. OR PROBATION OFFICER M. Marley		
COUNSEL FOR PEOPLE D. Maner		COUNSEL FOR DEFENDANT B. Lafferty ☒ APPTD.		

1. Defendant was convicted of the commission of the following felonies:
☐ Additional counts are listed on attachment
 _____ (number of pages attached)

CNT.	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE	664 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS.	MOS.
I	PC	664/187	Attempted Murder	2005	10-18-06	X			M							14	
II	PC	245(a)(1)	Assault w/ deadly weapon	2005	10-18-06	X			M						X	(6)	
III	PC	245(a)(1)	Assault w/ deadly weapon	2005	10-18-06	X			M		X					2	
V	PC	664/187	Attempted Murder	2005	10-18-06	X			M		X					4	8
VI	PC	246	Discharge of a weapon @ occupied vehicle	2005	10-18-06	X			M	X					X	(10)	

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

CNT.	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL
I	12022.53(b)	S	12022.53(c)	S	186.22(b)(1)	10			10 0
II	12022.5(a)	S	12022.7(a)	S	186.22(b)(1)	S	12022.53(d)	S	0 0
III	12022.5(a)	1.4	12022.7(a)	1	186.22(b)(1)	3.4			5 8
V	12022.53(b)	S	12022.53(c)	S	186.22(b)(1)	3.4			3 4
VI	12022.53(b)	S	12022.53(c)	S	186.22(b)(1)	S	12022.53(d)	S	0 0
VII	12022.5(a) (cc)	1.4	186.22(b)(1) (cc)	3.4					0 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL
667(a)	5	667.5(b)	1					6

4. ☒ Defendant was sentenced pursuant to PC 667 (b)-(l) or PC 1170.12 (two-strikes).
 5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES: **11 4**
 7. ☐ Additional indeterminate term (see CR-292).
 8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: **5 7**

ABSTRACT OF JUDGMENT - PRISON COMMITMENT ATTACHMENT PAGE

CR-290-A

PEOPLE OF THE STATE OF CALIFORNIA vs.
DEFENDANT: MICHAEL EDWARD WALKER, II

1091957

-A

-B

-C

-D

1. Defendant was convicted of the commission of the following felonies:
This attachment page number: 2

CNT.	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (per 1168.7)	654 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS.	MOS.
VII	PC	245(a)(1)	Assault w/ deadly weapon	2005	10-18-06	X			M	X						(2)	
VIII	PC	246	Discharge of a weapon @ Occupied Vehicle	2005	10-18-06	X			M			X				3	4
IX	PC	245(a)(1)	Assault w/ deadly weapon	2005	10-18-06	X			M	X					X	(2)	
X	PC	245(a)(2)	Assault w/ a Firearm	2005	10-18-06	X			M	X						(2)	
XI	PC	417(c)	Brandishing a Weapon @ Peace Officers	2005	10-18-06	X			M			X				1	4
XII	PC	69	Resisting Exec. Officers	2005	10-18-06	X			M			X				1	4
XIII	PC	12021(a)	Felon in Poss. of Firearm	2005	10-18-06	X			M	X						(1)	(4)
XIV	VC	2800.2(a)	Evading a Peace Officer	2005	10-18-06	X			M	X						(1)	(4)
					--												
					--												
					--												
					--												
					--												
TOTAL																	

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

CNT.	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL
VIII	186.22(b)(1)	3.4							3 4
IX	12022.5(a)	S	186.22(b)(1)	S					0 0
X	12022.5(a) (CC)	1.4	186.22(b)(1) (CC)	3.4					0 0
XI	186.22(b)(1)	1							1
XII	186.22(b)(1)	1							1
XIII	186.22(b)(1) (CC)	(1							0 0
XIV	186.22(b)(1) (CC)	(1							0 0
TOTAL									

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL

4. TOTAL TIME IMPOSED ON THIS ATTACHMENT PAGE:

11